

1 _____ RESOLUTION NO. _____
2 INTRODUCED BY _____

4 A RESOLUTION OF THE HOUSE OF REPRESENTATIVES OF THE STATE OF MONTANA
5 RECOMMENDING THE SUPREME COURT ADOPT RULES FOR TEMPORARY ADMISSION TO THE BAR
6 OF OUT-OF-STATE LAWYERS.

8 WHEREAS, public defenders and other legal services organizations provide important legal services
9 that protect Montanans' rights under the state and federal constitutions; and

10 WHEREAS, staffing shortages have been a challenge for the Office of State Public Defender; and

11 WHEREAS, the process for out-of-state lawyers to join the Montana bar is slow; and

12 WHEREAS, the Office of State Public Defender needs new hires to make court appearances
13 immediately; and

14 WHEREAS, states like North Dakota, Indiana, and Missouri have adopted rules to allow out-of-state
15 lawyers to temporarily practice law in their states under the supervision of a licensed attorney in good standing;
16 and

17 WHEREAS, a similar rule would benefit the Office of State Public Defender and the Montanans it
18 serves; and

19 WHEREAS, the Montana Supreme Court is empowered to make rules for admission to the bar.

21 NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE STATE OF
22 MONTANA:

23 That the House of Representatives recommends the Supreme Court adopt rules similar to North
24 Dakota Admission to Practice Rule 6.1 for temporary admission to the bar, and that, with minimal barriers, out-
25 of-state lawyers in good standing be temporarily admitted to practice law in Montana for up to 1 year.

26 BE IT FURTHER RESOLVED that the Secretary of State mail a copy of this resolution to each of the
27 seven justices of the Supreme Court and to the admissions administrator of the State Bar.

- END -